

conclusions, but they appear to be based on observation of the same photos taken by Caltrans's arborist Karl. However, the interpretation of these images differs markedly, this is ultimately a question of material fact for the court to resolve.

Proposed ruling: The motion for summary judgment is denied.

CU-26-00109 Danny Wiseman, et al. v. State of California (CalTrans), et al. 8-13-26

On calendar for Defendant State of California (CalTrans) motion to strike portions of Complaint. The motion is unopposed.

Plaintiffs: Jesse Burl Chrisp, Jesse Danoff

Defendants: Josephine Mendoza, Alex F. Pevzner (CalTrans); Martin Ambarcher (County of San Benito.)

4-10-2026: Complaint. This matter arises from a motorcycle accident occurring on 7-5-2025. Plaintiff Wiseman, and his passenger on the motorcycle were travelling on Route 25, southbound, and were within the approach and entry path of the SR-25/ SR-156 roundabout in San Benito County. The motorcycle struck one of the raised pavement delineators positioned on the travel path of vehicles entering the roundabout. Both Wiseman and Bailey were ejected from the motorcycle and suffered injury. This suit follows, on the following causes of action 1) Dangerous Condition of Public Property (Govt Code §835); 2) Failure to Warn (Gov't Code §835).

6-5-2026 County of San Benito Answers with a denial and asserting thirteen affirmative defenses.

6-15-2026 Defendant CalTrans files motion to strike portions of the complaint for pre judgment interest and post judgment interest (paragraph/ prayer 6, page 6, line 14 "Pre-judgment and post-judgment interest as permitted by law.") The Plaintiff concedes that the prayer for pre judgment interest against the state should be stricken out as it is not legally recoverable. Civil Code § 3291 states " this section shall not apply to a public entity, or to a public employee for an act or omission within the scope of employment, and neither the public entity nor the public employee shall be liable, directly or indirectly, to any person for any interest imposed by this section." Though the Plaintiffs agreed not to seek prejudgment interest from CalTrans, they have not amended their pleadings, thus the prayer is improper as it is not legally recoverable.

7-9-2026: Plaintiff files a partial dismissal as to any claim for prejudgment interest against the State of California. Legal Standard and analysis: Any irrelevant, false, or improper matter inserted in any pleading, or all or any part of any pleading "not drawn in conformity with the

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laws of this state, a court rule, or an order of court” may be struck out. (CCP §436.) A motion to strike may attack an entire pleading, and various sub parts of a pleading, such as a cause of action or a component paragraph, words, or phrases. (*Okorie v. Los Angeles Unified School Dist.* (2017) 14 Cal. Ap. 5th 574, 589.) In reviewing a matters subject to a motion, matters are deemed immaterial if they are not essential to the claim, are neither pertinent nor supported by an otherwise sufficient claim, or are a demand or judgment or a request for relief not supported by the allegations. (CCP§431.10 sub (b).) Here, the Plaintiffs are seeking pre judgment interest in their prayer for relief which is not statutorily permissible.

Proposed ruling: Grant the motion to strike prayer 6, page 6, line 14 stating “Pre-judgment interest and post-judgment interest as permitted by law.”

CU-26-00011 **Russell Enz v. Enz Vineyards, et al**

5-14-2026

On calendar for 1) Defendant/ Cross Complainant Robert Enz’s motion for preference (CCP§36)

Plaintiff: Effie Anastassiou (Russell Enz, Karen Sims)

Defendant: Arif Virji (Enz Vineyards)

Defendant: Joseph Victor Harrison, Michael Russell Wanser (Robert Enz)

Defendant: Jaimee Amone Modica (Michael Enz)

Cross Complaint:

XPlaintiff: Arif Virji (Enz Vineyards)

XDefendant: Effie Anastassiou (Russell Enz)

2-18-2026 FAC Complaint for 1) Breach of Employment Contract with Russell Enz; 2) Breach of Employment Contract with Karrie Sims (aka Karen Sims); 3) Breaches of Implied Covenant of Good Faith and Fair Dealing in Employment Contracts; 4) Fraudulent Inducement; 5) Conversion; 6) Failure to Timely Make 401K Contribution; 7) Promissory Estoppel with Respect to Silverado; 8) Wrongful Eviction; 9) Breach of Oral Equipment Lease; 10) Intentional Interference with Business Relations; 11) Injunctive Relief re Personal Property; 12) Declaratory Relief re Residential Lease; 13) Declaratory and Injunctive Relief re Share Reversion Demand and Exercise of Shareholder Rights

2-19-2026 X Complaint: Defendant’s Cross Complaint for 1) Breach of Fiduciary Duties (Violation of Corp. Code §309); 2) Civil Recovery under Penal Code §496(c) (By Enz Vineyards, Robert Enz as Shareholder, Michael Enz as Conservator for Susan Enz as

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